

HOUSE No. 2237

The Commonwealth of Massachusetts

PRESENTED BY:

Joshua Tarsky, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act regarding a minor's consent to substance use treatment.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Debra Schmill</i>	<i>236 Dedham Street, Canton, MA 92021</i>	<i>1/17/2025</i>

HOUSE No. 2237

By Representative Tarsky of Needham (by request), a petition (accompanied by bill, House, No. 2237) of Debra Schmill relative to a minor's consent to substance use treatment. Mental Health, Substance Use and Recovery.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act regarding a minor's consent to substance use treatment.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 112, Section 12E of the General Laws, as appearing in the 2020 official edition,
2 is hereby amended by striking out the first sentence and replacing it thereof with the following
3 sentence:-

4 A minor twelve years of age or older who is found to suffer from a substance use disorder
5 by a medical professional may give their consent to the furnishing of hospital and medical care
6 related to the diagnosis or treatment of such substance use disorder. Such consent shall not be
7 subject to disaffirmance because of minority.